

Itishree Pradhan vs Subrat Ranjan Kapa Opposite ... on 4 July, 2025

IN THE HIGH COURT OF ORISSA, CUTTACK

TRP(C) No.29 of 2024

Itishree Pradhan		Petitioner
	-Versus-	
Subrat Ranjan Kapa		Opposite Party

TRP(C) No.30 of 2024

Itishree Pradhan		Petitioner
	-Versus-	
Subrat Ranjan Kapa		Opposite Party

Advocate for the parties

For Petitioner	: Mr. N. Behuria
(in both the cases)	Advocate

For Opposite Party	: Mr. S.K. Pradhan
(in both the cases)	Advocate

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CORAM: JUSTICE SANJAY KUMAR MISHRA

Date of Hearing and Judgment : 04.07.2025

S.K. MISHRA, J.

1. TRP(C) No.29 of 2024 has been filed by the Petitioner-Wife, for transfer of C.P. No.84 of 2021, filed by the Opposite Party-Husband for divorce, from the Court of Judge, Family Court, Jagatsinghpur, to the Court of Judge, Family Court, Cuttack.

2. Similarly, in TRPC No.30 of 2024, which is also on board today, the Petitioner-Wife has prayed for transfer of C.P. No.245 of 2021, filed by her under section-9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights, from the Court of Judge, Family Court, Jagatsinghpur, to Court of Judge, Family Court, Cuttack.

3. Parties in the transfer petitions and the grounds on which prayers for transfer of both the proceedings being same, both the transfer petitions are taken up for hearing and disposal together vide this common judgment.

4. Heard learned Counsel for the parties.

5. Learned Counsel for the Petitioner-Wife, drawing attention of this Court to the averments made in Paras 7 and 8 of both the transfer Petitions, which are identical, submits, though the Petitioner-wife, after her desertion, was residing with her parents At-Kiada, P.O.-Ambiki in the district of Jagatsinghpur, she has preferred both the transfer petitions on the ground that she has enrolled herself in a Coaching Institution at Cuttack and studying thereon by staying in a rented house in Cuttack. The duration of the said course is from 29.11.2023 to 05.12.2025. She is unable to travel such a long distance from Cuttack to Jagatsinghpur to pursue the proceedings in C.P. No.84 of 2021 and C.P. No.245 of 2021, both pending before the Judge, Family Court, Jagatsinghpur.

6. Though no written objection has been filed opposing to such prayers for transfer, per contra, learned Counsel for the Opposite Party-Husband opposes to such prayer for transfer of proceedings orally. Drawing attention of this Court to the cause title in both the transfer petitions so also pleadings made therein, learned Counsel for the Opposite Party-Husband submits, though a stand has been taken in both the transfer petitions that at present the Petitioner-wife is staying in a rented house in Cuttack, neither in the cause title nor in the body of the transfer petitions it has been indicated as to where she is residing at present in Cuttack. That apart, the sole ground, on which both the transfer petitions have been filed, cannot be a good ground for seeking transfer of the said proceedings from the Court of Judge, Family Court, Jagatsinghpur to the Court of Judge, Family Court, Cuttack.

7. He further submits, the Opposite Party-Husband filed C.P. No.84 of 2021 under section 13 (1) of the Hindu Marriage Act, 1955 read with section 7 of the Family Court's Act, 1984 for divorce. On being noticed in the said case, though the Petitioner-Wife appeared in the said case, as a counter blast, subsequently she filed C.P. No.245 of 2021 under section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights. So far as C.P. No.84 of 2021, she has already filed her written statement since September, 2021. Similarly, the Opposite Party-Husband has also filed his written statement in C.P. No.245 of 2021 and both the said cases are ready for hearing.

8. Learned Counsel for the Opposite Party-Husband submits, even if such plea of the Petitioner-Wife is accepted and admitted to be true, the tenure of coaching is going to expire on 05.12.2025. Hence, prayers for transfer of proceedings in both the transfer petitions deserve rejection. Rather, a direction should be given to the Judge, Family Court, Jagatsinghpur to expedite the hearing in both the proceedings i.e. C.P. No.84 of 2021 and C.P. No.245 of 2021, for disposal of the said cases at the earliest in a time bound manner and both the said cases should be tried together to avoid conflicting decisions and multiplicity of proceedings.

9. Law is well settled that, while hearing the transfer applications for transfer of matrimonial cases, the convenience of wife has to be looked at. However, so far as the present transfer petitions are

concerned, the Petitioner-Wife has prayed for transfer of C.P. No.84 of 2021 filed by her husband so also C.P. No.245 of 2021 filed by her after more than three years, for transfer of the said proceedings to Cuttack on the ground that she has taken admission in a coaching institute at Cuttack since 29.11.2023 and is at present residing at Cuttack in a rented house. Admittedly, neither in the cause title nor in body of the transfer petition the present address of the Petitioner-Wife has been disclosed by her. That apart, the affidavit sworn by her in both the transfer petitions also does not indicate her present address.

10. As it seems from the conduct of the Petitioner-wife, taking advantage of the leniency shown by the High Court so also Supreme Court that convenience of wife must be looked at while dealing with transfer petitions, she has filed these applications for transfer of proceedings initiated by herself so also her husband at Jagatsinghpur, to the Court at Cuttack. It is a glaring example of misuse of leniency shown by the Courts while dealing with application for transfer of matrimonial proceedings at the instance of the wife.

11. In Anindita Das Vs. Srijit Das, reported in (2006) 9 Supreme Court Cases, the Supreme Court observed as follow:-

"Even otherwise, it must be seen that at one stage this Court was showing leniency to ladies. But since then it has been found that a large number of transfer petitions are filed by women taking advantage of the leniency shown by this Court. On an average at least 10 to 15 transfer petitions are on board of each court on each admission day. It is, therefore, clear that leniency of this Court is being misused by the women."

12. In view of the discussions made above, this Court is of the view that each transfer petition, even if it is filed by the Wife/Women for transfer of matrimonial proceedings, is required to be considered on its own merit.

13. Accordingly, taking into consideration the arguments advanced by the learned Counsel for the parties so also the grounds urged in both the transfer petitions, this Court is not inclined to allow the prayers for transfer. However, as both the said cases are ready for hearing, to avoid conflicting judgments so also multiplicity of proceedings, the Judge, Family Court, Jagatsinghpur is directed to take up C.P. No.84 of 2021 and C.P. No.245 of 2021 together and proceed further in accordance with law.

14. The Judge, Family Court at Jagatsinghpur is requested to explore the facilities of Video Conferencing available in the said Court and allow the parties to appear through virtual mode following due procedure as prescribed under the Orissa High Court Video Conferencing for Courts Rules, 2020. However, on the dates of effective hearing i.e for examination and cross- examination of witnesses, so also for other purposes, if so required and ordered by the concerned Court, the parties shall remain physically present before the Court at Jagatsinghpur.

15. Since both the CPs are ready for trial, the parties are directed not to ask for unnecessary adjournments and cooperate with the Judge, Family Court, Jagatsinghpur, who shall do well to

conclude both the said proceedings at the earliest, preferably within a period of six months from the date of production of certified copy of this order.

16. Interim orders passed in both the transfer petitions stand vacated.

17. Urgent certified copy of this order be granted on proper application as per rules.

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S.K. MISHRA, J.

Orissa High Court, Cuttack.

Dated, 4th July, 2025/ Banita Signed by: BANITA PRIYADARSHINI PALEI Location: HIGH COURT OF ORISSA, CUTTACK Date: 07-Jul-2025 17:59:58